

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case No. 2018-9670

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING EMMET
FRANKLIN BELLVILLE, III, LPC, LICENSE NO. LPC-0004358,

Respondent.

The State Board of Licensed Professional Counselor Examiners (“Board”), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge (“ALJ”) in accordance with the provisions of section 12-245-101, et al., of the Colorado Revised Statutes (“Act”) and the Administrative Procedure Act (“APA”), and having reviewed the ALJ’s Initial Decision Upon Default, hereby enters the following findings and order:

1. Respondent Emmet Franklin Bellville, III (“Respondent”) was served with a Notice of Charges on July 27, 2022 and Amended Notice of Charges on August 24, 2022.
2. On or about October 21, 2022, the Board, by and through counsel, filed a Motion for Entry of Default with the Office of Administrative Courts. The ALJ issued an Entry of Default on November 2, 2022.
3. The ALJ’s Entry of Default was mailed to Respondent by first class mail to the address of record on November 3, 2022.
4. The ALJ’s Initial Decision Upon Default was rendered on November 19, 2022 and received by the Board on November 21, 2022. A copy of the Initial Decision Upon Default is attached to this Order and incorporated herein by reference.
5. The Initial Decision was served on Respondent and the Board’s prosecuting attorney on November 28, 2022, via first-class mail and electronic mail.
6. Neither the Board’s prosecuting attorney nor Respondent filed exceptions.
7. Upon review of the Initial Decision and Record, the Board hereby:
 - a. Accepts the Findings of Fact, as set forth in paragraphs one through seventeen of the attached Initial Decision, in their entirety.

- b. Adopts the Conclusions of Law, as set forth in paragraphs one through three of the attached Initial Decision, in their entirety.
- c. Adopts the ALJ's recommended sanction of Revocation, as set forth in the final paragraph of the attached Initial Decision.

8. IT IS THEREFORE ORDERED by the BOARD that Respondent's license to practice professional counseling in the state of Colorado is hereby REVOKED from the effective date of this Final Board Order. The Final Board Order is hereby effective upon service to Respondent. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-nine (49) days after such action becomes effective. Reference sections 24-4-106(11) and 12-20-408, C.R.S.

SO ORDERED this 4th day of January, 2023.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



KAREN M. MCGOVERN
DEPUTY DIRECTOR OF LEGAL AFFAIRS

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, Denver, CO 80203	
State Board of Licensed Professional Counselor Examiners Petitioner VS. Emmet Bellville III Respondent	
	▲ COURT USE ONLY ▲
	CASE NUMBER: PCE 2022-0004
NOTICE OF ORDER ISSUANCE	

The attached Initial Decision Upon Default was issued November 19, 2022 in the above referenced case.

Dated: November 21, 2022

/s/ Adriana Chavez

Adriana Chavez
Court Clerk

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4 th Floor, Denver, Colorado 80203	▲ COURT USE ONLY ▲
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, VS EMMET FRANKLIN BELLVILLE III, Licensed Professional Counselor, License No. LPC.0004358, Respondent.	
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Board of Licensed Professional Counselor Examiners (Board) involving the license to practice as a licensed professional counselor of Emmet Franklin Bellville III (Respondent). The Board was represented by Assistant Attorney General Brianna S. Tancher. Respondent failed to answer the Notice of Charges. Based upon Respondent's failure to file an Answer, an Entry of Default was issued on November 3, 2022. Respondent then had ten days to show good cause why the Entry of Default should be set aside. § 24-4-105(2)(b), C.R.S. (2022). A motion to set aside the Entry of Default was not filed and this matter is ready for issuance of an Initial Decision Upon Default.

FINDINGS OF FACT

Procedural Facts

1. The last physical address furnished by Respondent to the Board is [REDACTED]. The last email address furnished by Respondent to the Board is [REDACTED].
2. Notice of the nature of this proceeding, the legal authority and jurisdiction under which it is held, and the matters of fact and law asserted were mailed to Respondent by first class mail to the address stated above on July 27, 2022.
3. The Board's Motion for Entry of Default was mailed to Respondent by first class mail to the address stated above on October 19, 2022.
4. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the address stated above on November 3, 2022.
5. Respondent did not file a timely motion to set aside the Entry of Default.

Underlying Facts

6. Respondent was licensed to practice as a licensed professional counselor (LPC) within the State of Colorado on or about June 20, 2006 under license number LPC.0004358 and was so licensed at all times relevant to this matter.
7. Pursuant to Final Agency Order, Respondent's LPC license has been suspended since September 27, 2019.
8. The LPC Board has jurisdiction over the person of Respondent and the subject matter herein.
9. On or about December 20, 2018, the LPC Board received a complaint from N.P., a friend of Respondent's former client M.B.
10. M.B.'s identity is known to Respondent.
11. N.P. reported that Respondent is living with M.B.
12. As a result, the Department of Regulatory Agencies referred this case to the Office of Investigations.
13. The report of investigation revealed that Respondent was living with M.B. for some period of time.
14. Respondent and client M.B. shared a mailing address for some period of time.
15. The Office of Investigations secured text messages sent from Respondent ranging from July 6, 2018 through July 21, 2018.
16. The report of investigation revealed that N.P. received text messages from Respondent, in which:
 - a. Respondent requested drugs from N.P.
 - b. Respondent admitted to leaving a child in his home alone with "dope."
 - c. Respondent admitted that he was on drugs while concurrently working on a case professionally.
 - d. Respondent indicated that he had awake for six days consecutively, from what is believed to be methamphetamine use.
17. Respondent also provided N.P. with therapeutic appointment notes from client M.B.'s initial intake appointment with Respondent.

CONCLUSIONS OF LAW

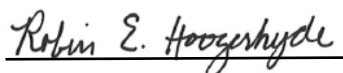
1. Respondent received timely notice of the time, place, and nature of this hearing; of all matters of fact and law asserted; and all matters required by section 24-4-105(2)(a), C.R.S. (2022), and in the manner required by that section.
2. The Board has jurisdiction over Respondent and over his to practice as licensed professional counselor pursuant to the provisions of the Mental Health Practice Act, §§ 12-245-101, et seq., C.R.S. (2022).
3. Respondent is subject to discipline pursuant to §§ 12-245-224(1)(b), (e), (i), and (r) because he provided unauthorized persons with therapy notes without a release, engaged in illicit drug use and failed to report his substance abuse habits to the Board, engaged in a dual relationship, and falsified documents regarding clients.

INITIAL DECISION

When the Board has proven that a licensee has violated the licensing law, it may deny, revoke, or suspend the licensee's license to practice as a licensed professional counselor. § 12-245-225, C.R.S. (2022). The Board seeks an order revoking Respondent's license to practice as Licensed Professional Counselor in the State of Colorado.

Respondent failed to answer the Notice of Charges. There is no information before the Administrative Law Judge indicating that some sanction other than revocation of Respondent's license to practice as a licensed professional counselor is appropriate in this case. Respondent's failure to appear in this proceeding demonstrates a lack of interest in maintaining his license to practice as a licensed professional counselor. It is therefore the Initial Decision Upon Default of the Administrative Law Judge that Respondent's license to practice as a licensed professional counselor be revoked.

SIGNED: November 19, 2022


Robin E. Hoogerhyde
Administrative Law Judge